

**Superior Court of the State of California
County of Orange**

DEPT C20 TENTATIVE RULINGS

Judge Theodore Howard

The court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5220. If no appearance is made by either party, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 4:00 p.m. on the day before the hearing.

COURT REPORTERS WILL NO LONGER BE PROVIDED FOR TRIAL AND OTHER HEARINGS WHERE LIVE EVIDENCE WILL BE PRESENTED. IF A PARTY DESIRES A COURT REPORTER FOR ANY HEARING INCLUDING, BUT NOT LIMITED TO, LAW AND MOTION MATTERS, EX PARTE MATTERS AND CASE MANAGEMENT CONFERENCES, IT WILL BE THE RESPONSIBILITY OF THAT PARTY TO PROVIDE ITS OWN COURT REPORTER. PARTIES MUST COMPLY WITH THE COURT'S POLICY ON THE USE OF PRO TEMPORE COURT REPORTERS WHICH CAN BE FOUND ON THE COURT'S WEBSITE AT:

[http://www.occourts.org/media/pdf/7-25-2014 Privately Retained Court Reporter Policy.pdf](http://www.occourts.org/media/pdf/7-25-2014%20Privately%20Retained%20Court%20Reporter%20Policy.pdf)

The Orange County Superior Court has implemented administrative orders, policies, and procedures noted on the Court's website to address the limitations and restrictions presented during the COVID-19 pandemic at Civil Covid-19. Due to the fluid nature of this crisis, you are encouraged to frequently check the Court's website at <https://www.occourts.org> for the most up to date information relating to Civil Operations.

Unless otherwise ordered by the Court, all Unlimited and Complex proceedings may be conducted via Zoom or in person. On the date of your hearing click the Department C20 Link to begin the remote online check in/Zoom appearance process:

<https://occourtsapp.occourts.org/aci/checkin-results?dept=C20>

Date: July 2, 2026

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1.	Brixen & Sons, Inc. v. Boss Industries Incorporated 25-1485177	Plaintiff Brixen & Sons, Inc.'s ("Plaintiff") unopposed motion for attorney fees against defendants Boss Industries Incorporated and Todd W. Gibb ("Defendants" together) is GRANTED . On April 23, 2026, the court entered judgment in favor of Plaintiff and against Defendants. (ROA 98.) The underlying lease contract and guaranty both contain attorney fees provisions awarding attorney fees

		to the prevailing party. (Cha Decl., Ex. A.) Pursuant to <i>Civ. Proc. Code</i> §§ 1032(a)(4) and 1033.5, and <i>Civ. Code</i> § 1717, Plaintiff as the prevailing party may recover attorney fees and costs from Defendants. The court has reviewed the billing entries provided by Plaintiff and found some items that are excessive. Due to the lack of opposition and reply briefs on this motion, the court will deduct the anticipated \$5,000. The court will also deduct \$4,357.50 in additional fees it found excessive on a relatively simple summary judgment motion. The court hereby awards reasonable attorney fees of \$57,540.50 to Plaintiff. (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095.) The court awards Plaintiff the full \$1,695.08 in requested costs as the prevailing party. (<i>Civ. Proc. Code</i> § 1033.5; <i>Ladas v. California State Auto. Assn.</i> (1993) 19 Cal. App. 4th 761, 774.) The combined total in attorney fees and costs that awarded in favor of Plaintiff and against Defendants is \$59,235.58. <i>Plaintiff to give notice.</i>
2.	Gonzalez v. General Motors, LLC 24-1426822	Plaintiff Francisco Gonzalez's ("Plaintiff") Motion for Attorney Fees and Costs ("Motion") is GRANTED. Plaintiff is the prevailing party in this action after settling defendant General Motors, LLC (Defendant). Pursuant to <i>Civil Code</i> section 1794, subdivisions (d) and (e), as the prevailing party on a lemon law matter, Plaintiff is entitled to recover reasonable attorney fees. (<i>Serrano v. Priest</i> (1977) 20 Cal. 3d 25, 49; <i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal. App. 4th 967, 998.) Plaintiff's counsel requests \$41,229.50 in attorney fees, plus a 0.15 multiple thereon for an additional \$6,184.42 in fees, for a total of \$47,413.92 in attorney fees. The court, having reviewed the billing entries provided by Plaintiff's counsel finds the hourly billing rates between \$350/hr. and \$695/hr. are within the reasonable range. The court finds the hours billed are excessive. The majority of the excessive hours are those entries with dates identified as "TBD" in the billing and are related to un-filed motions to strike/tax costs and oppositions/appearances related thereto. There are several other entries that had somewhat excessive billing which the court also reduced. Given how uncomplicated this matter was the reasonable attorney fees to be \$33,067.50. (<i>PCLM Group, Inc. vs. Drexler</i> (2000) 22 Cal.4th 1084, 1094-96.) The request for a multiplier is denied as this was not a complicated matter and counsel reasonably spent on average approximately 3.1 hours per month on this case. The court does not find any additional factors would support the need for a multiplier. The request for costs totaling \$2,317.71 is granted as Plaintiff filed a signed memorandum of costs. (<i>Nelson v. Anderson</i> (1999) 72 Cal. App. 4th 111, 131.) The burden to object to the costs would be on